

The case of Wong Po Kwong v Tsang King Fung and others

MISCELLANEOUS PROCEEDINGS NO 2487 OF
2017

Group ■

Group Members:

[REDACTED]

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Introduction

- Topic: adverse possession
- Heard in the District Court of HKSAR
- Involves surveyor Eric Tang as the expert
- Things to explore:
 - Analysis of the case based on FIRAC Model (e.g., Facts, Issues, Rules / Reasoning, Application and Analysis and Conclusion)
 - Study of the Judgement
 - Role of the land surveyor
 - Our own opinions

Case background

"Disputed Land"

Lot 1838 and 1837 BRP are adjoining lots

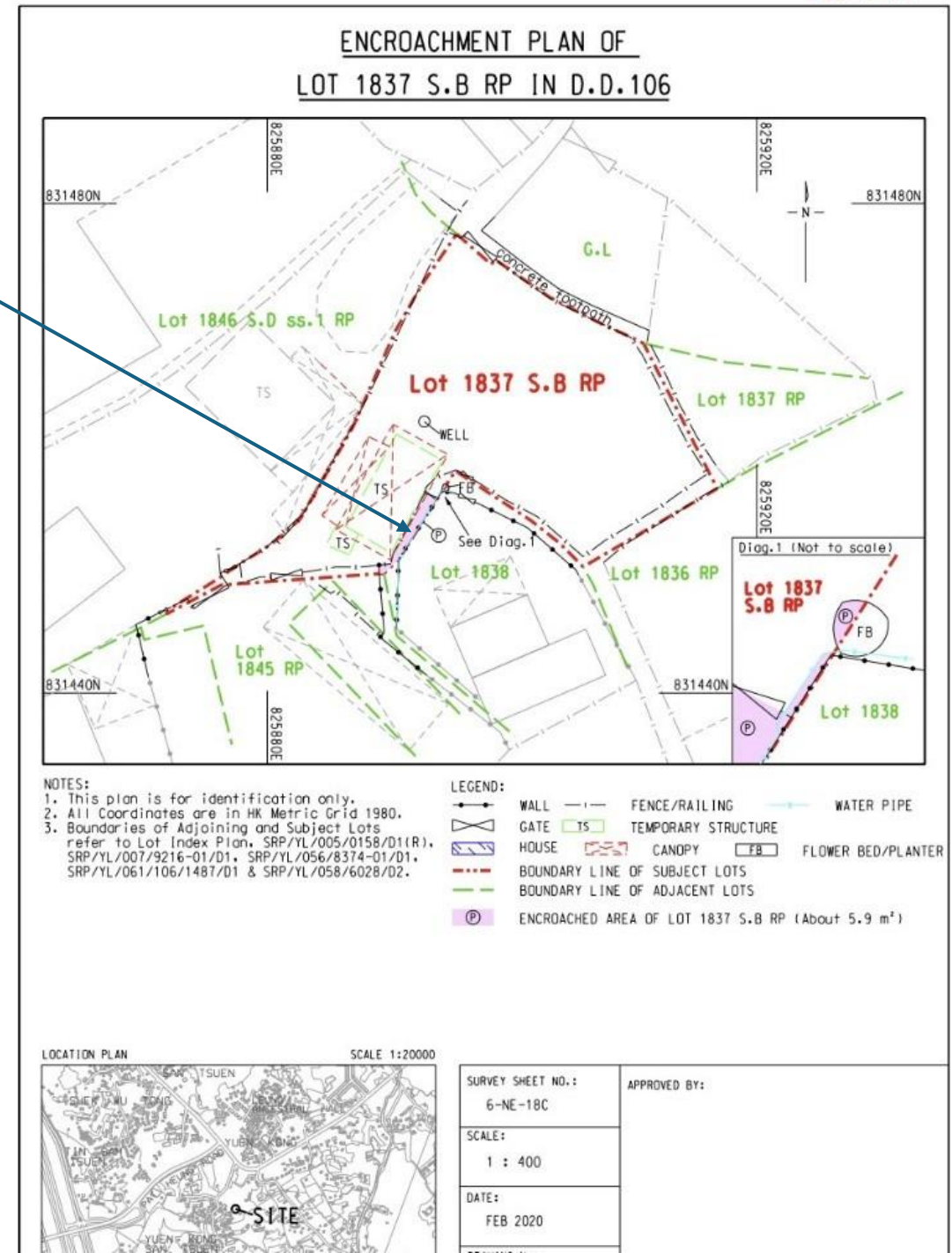
Located in Yuen Long, D.D.106

"Disputed Land" is a rectangular strip, located within the two lots

Disputed Land is within the Plaintiff, owner of 1837 BRP

Plaintiff thinks the defendants have trespassed

The defendants claim adverse possession

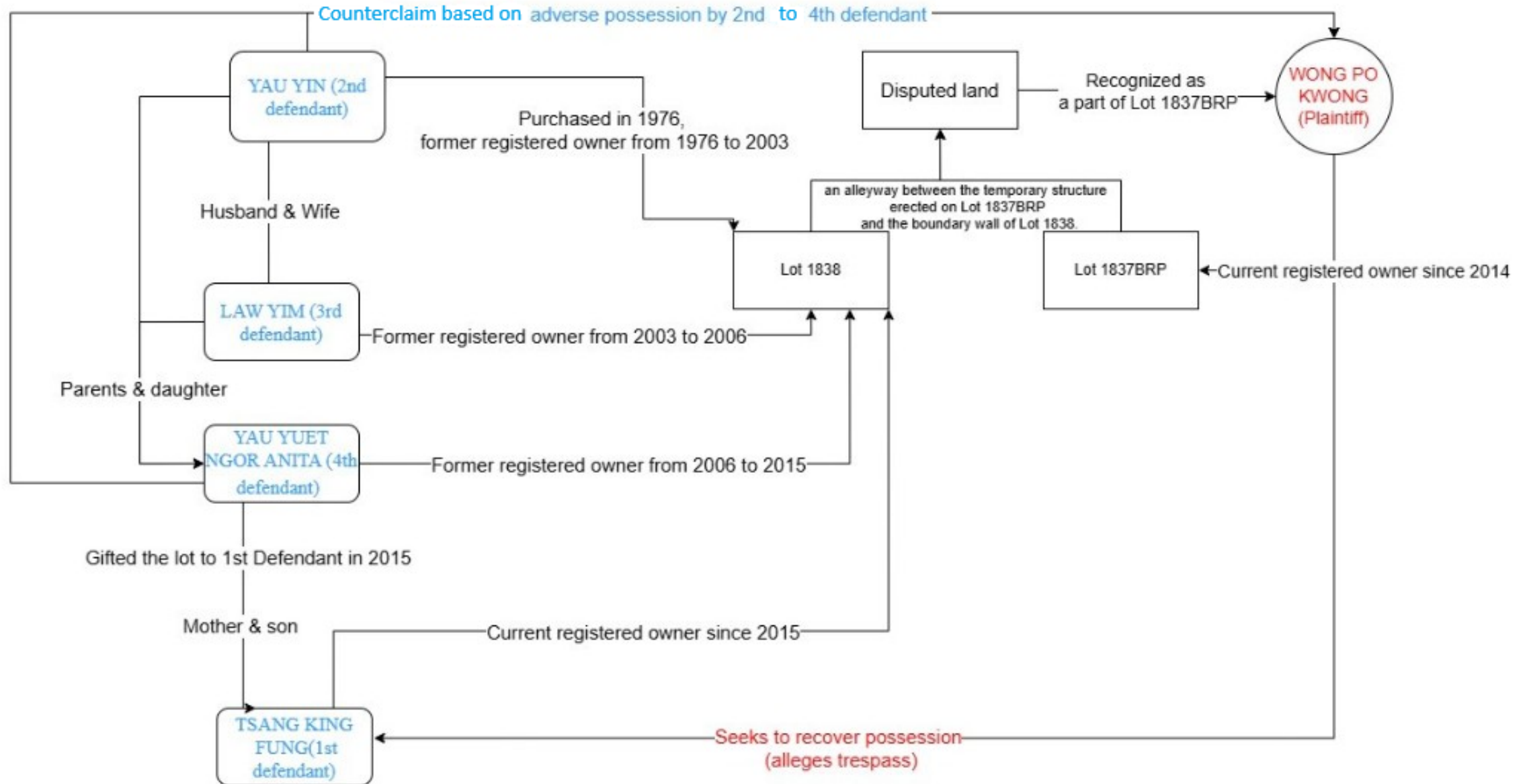


Parties Involved

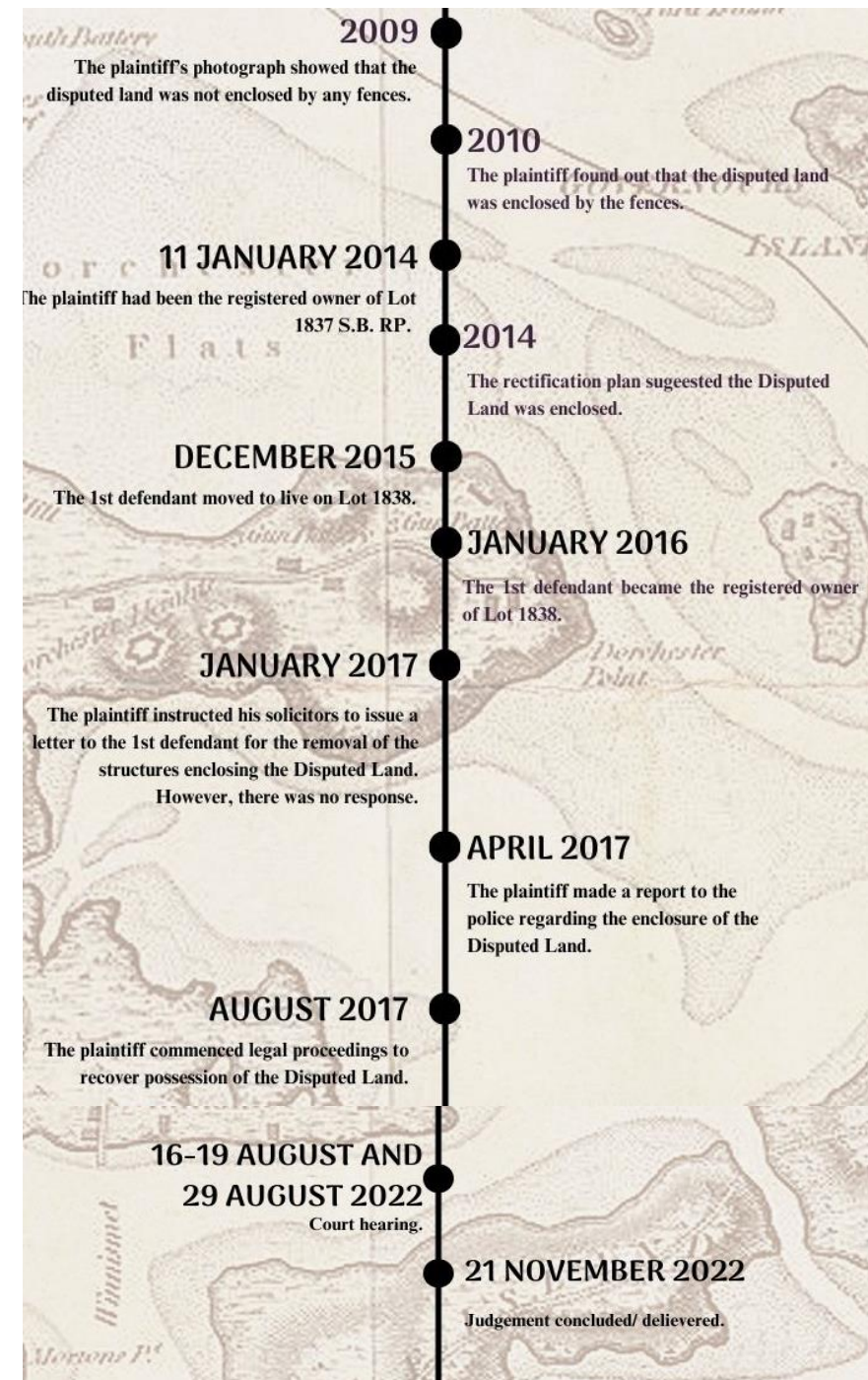
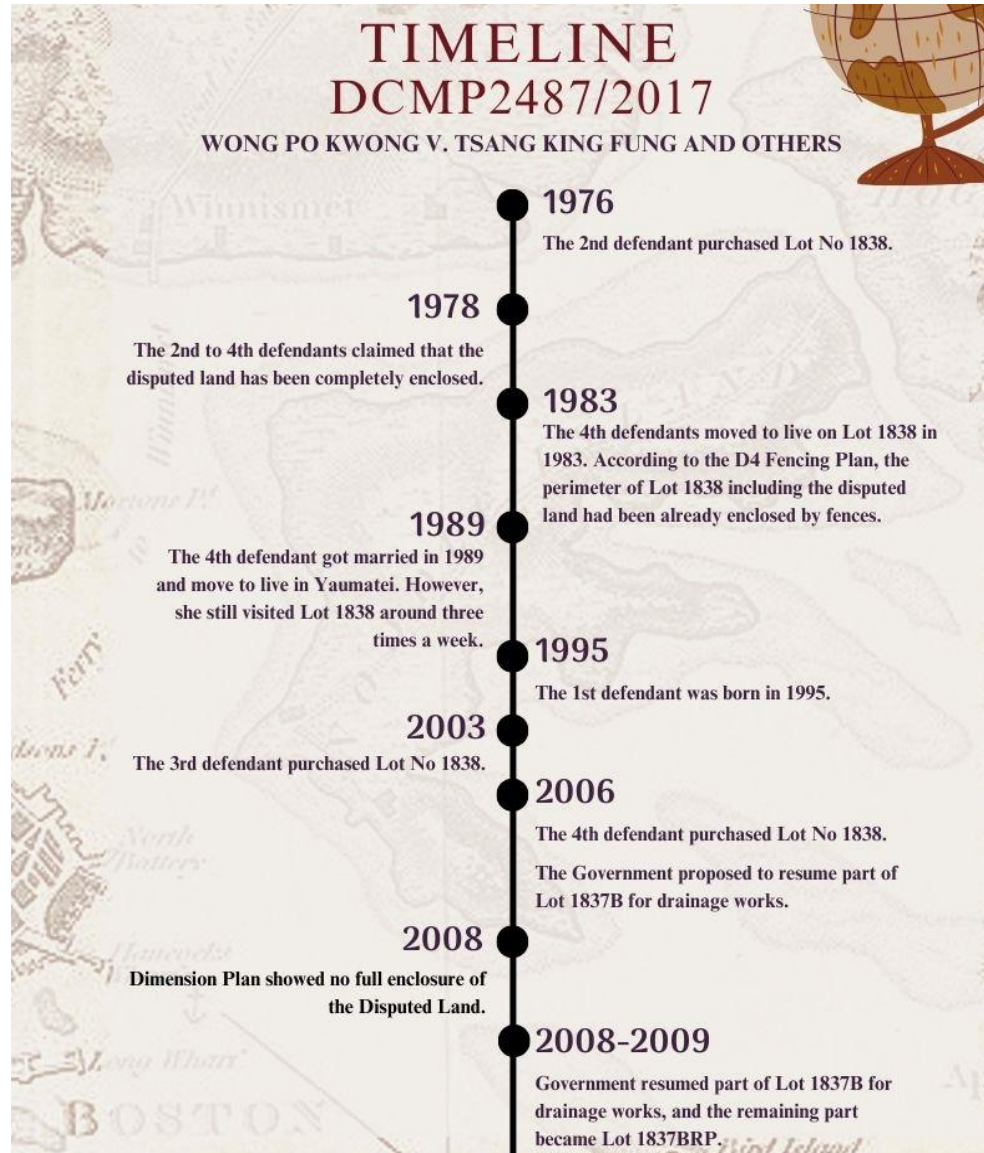
- Plaintiff: Wong Po Kwong
- 1st Defendant: Tsang King Fung
- 2nd-4th Defendants: Yau Yin, Law Yim, Yau Yuet Ngor Anita
- Expert Witness: Mr. Eric Tang, land surveyor



Parties Involved – relationship diagram

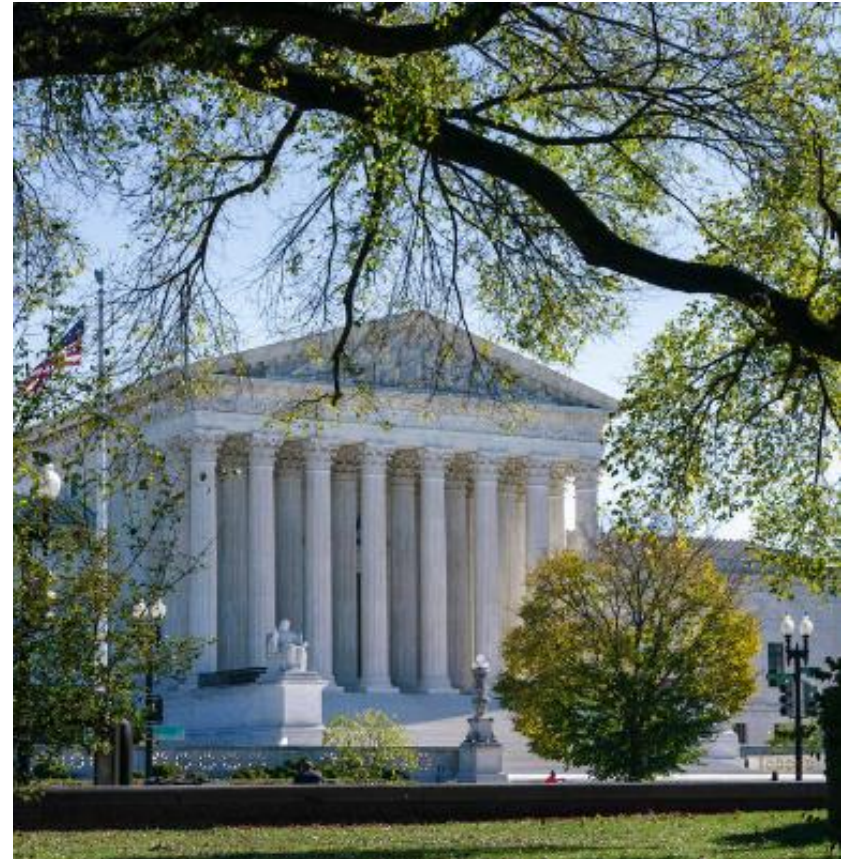


Fact – timeline of events



Fact – The plaintiff's side

- **Wong Po Kwong**
- He was born in 1995.
- Since 1980s, he had visited Lot 1873B regularly for recreation purposes.
- In 2006, he attended various meetings with different departments to express that he objected the plan on undergoing the drainage improvement projects.
- On 28 March 2008, the government started the drainage improvement projects by resuming parts of Lot 1837B and the parts not resumed became Lot 1837BRP.
- He did not believe that the orange flag placed by the contractors was to indicate the lot boundary.
- In 2009, he took various aerial photographs on the unenclosed Disputed Land.
- In 2010, he had discovered that the Disputed Land was enclosed and demanded the defendants to remove the fencing. However, there was no response among them.
- On 9 April 2017, he reported this case to the police to identify the person who was in charge of constructing the fencing and enclosing the Disputed Land.
- On 17 August 2018, it was confirmed that the 1st defendant was the one the plaintiff was looking for.



Fact – The defendant's side

- **2nd and 3rd defendant** were not able to give too much evidence (∴health issues).

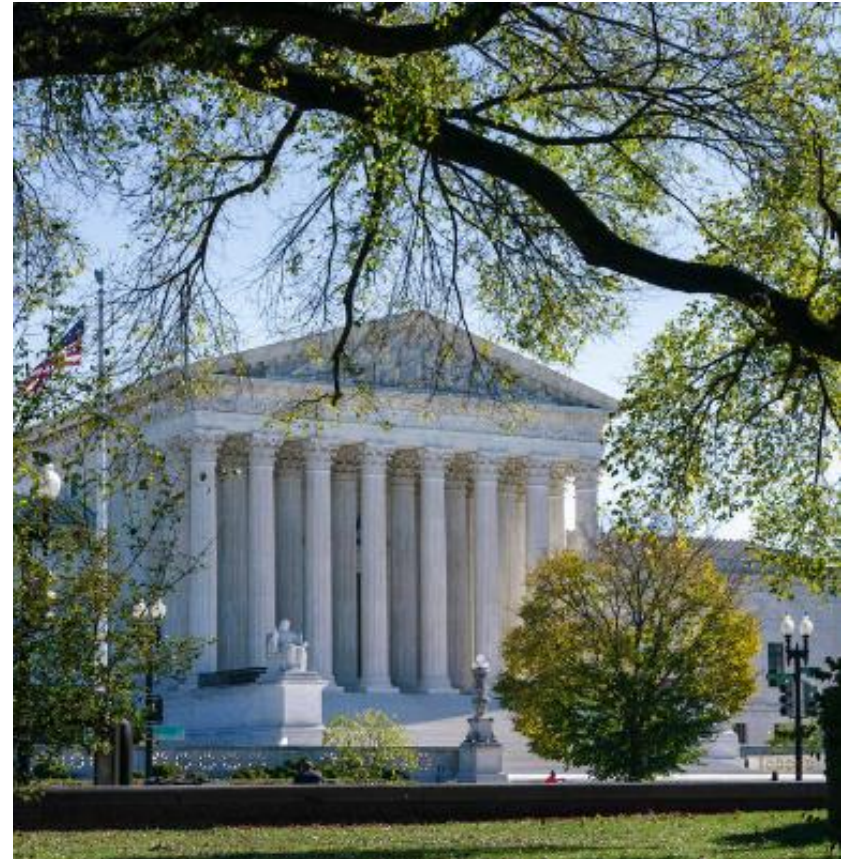
1st defendant (Tsang King Fung):

- He was born in 1995.
- On 14 December 2015, he became the registered owner of Lot 1838.
- In January 2016, he moved to Lot 1838. He stated that he was not involved in any action on the fencing on the Disputed Land since he was only 15 years old after the plaintiff had found that the Disputed Land had been enclosed in 2010.
- In April 2017, he was not aware that his name was told by the 4th defendant during the police visit.



Fact – The defendant's side

- **4th defendant (Yau Yuet Ngor Anita):**
- She claimed that Lot 1838 including the Disputed Land had been enclosed by the wire fences since 1983.
- She accepted that the Disputed Land was not enclosed in 2009 by looking through the photographs taken by the plaintiff.
- However, to explain the discrepancy, she changed the statement that she had not seen the photographs taken by the plaintiff, and changed the remodeling of the fencing took place in 2009 instead of 2010. She also said that the fencing of the entrance of the Disputed Land was demolished.
- She accepted that no documentary evidence was available to show the changes to the erection of the original fencing and no photographs to show the enclosure of the entrance of the Disputed Land in 2010 → relied on testimony only.
- She disagreed the fact that the orange flag outside the Disputed Land shown in the plaintiff's photographs were put by the 2nd defendant to tell others for carrying out the Works.



Fact – Expert Witness: Mr. Eric Tang



The plaintiff's expert, as well as a professional land surveyor.



He examined that the aerial photos and land survey sheets could not conclusively show presence or absence of fencing of the Disputed Land ($\because$ The aerial photos were poor quality and covered by tree spread since 1980).



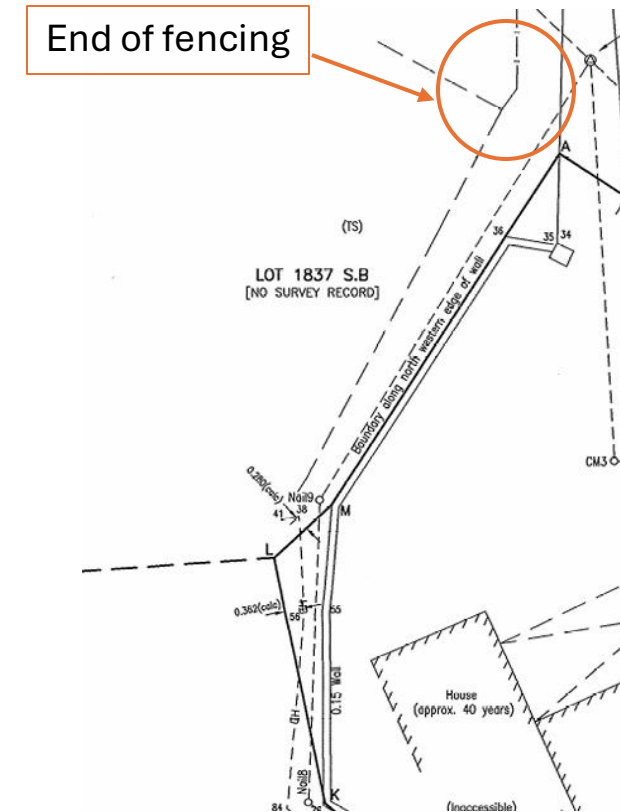
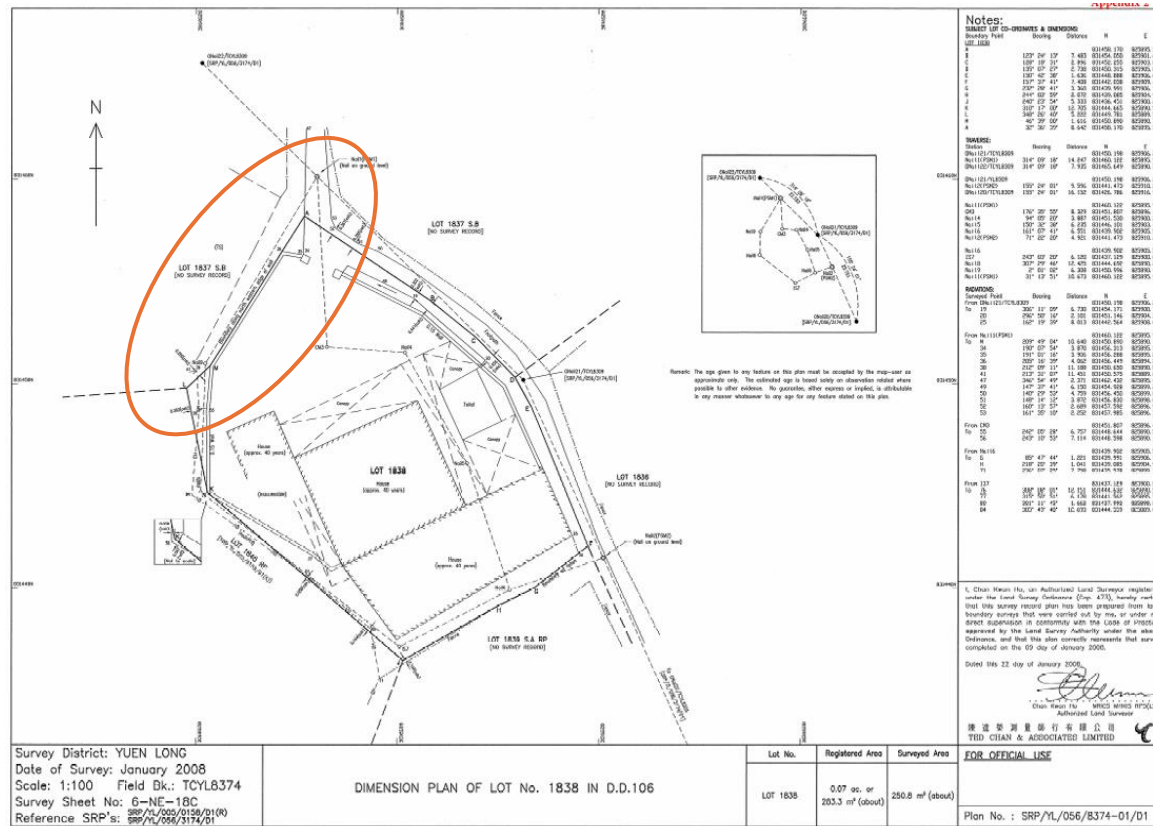
He also examined the dimension plan (2008) and the rectification plan (31 July 2014) Based on these plans, Mr. Tang thought the Disputed Land was enclosed between 2008-2014 ($\because$ In 2008, the dimension plan marked no enclosure while in 2014, the rectification plan marked enclosure).



Disputed Land being covered by trees

Fact – Expert Witness

- The SRP (dimension plan) prepared by Mr. Chan about adjoining lot 1838 in 2008
- No feature has been depicted, such as fences and gate.

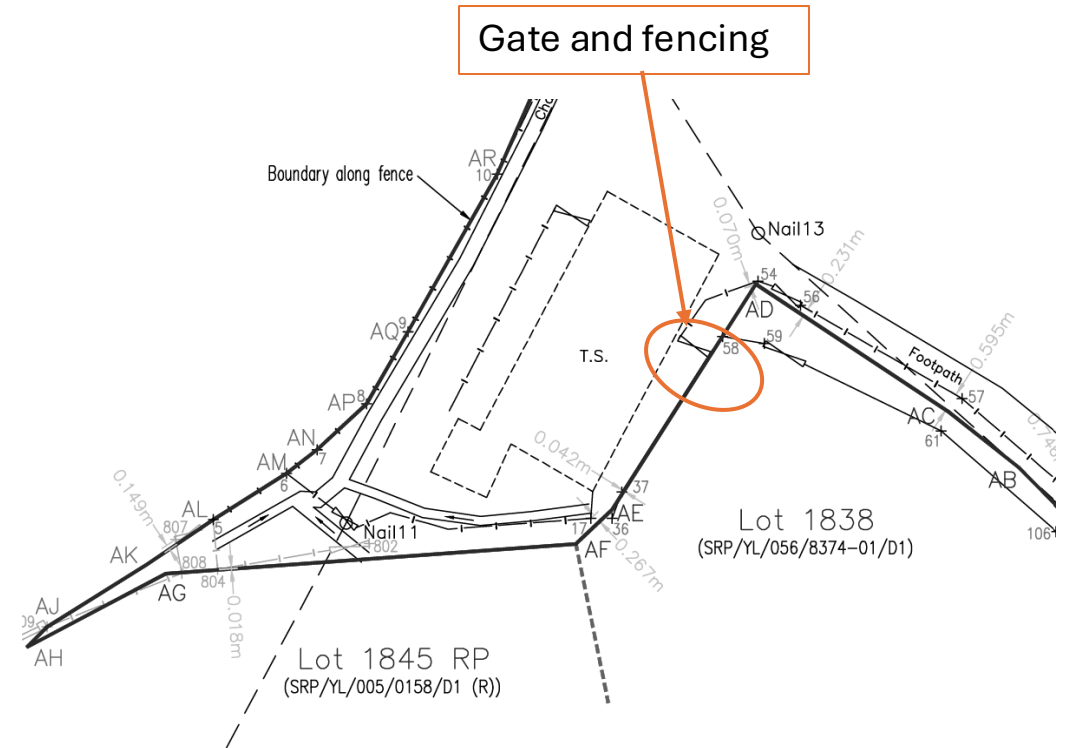
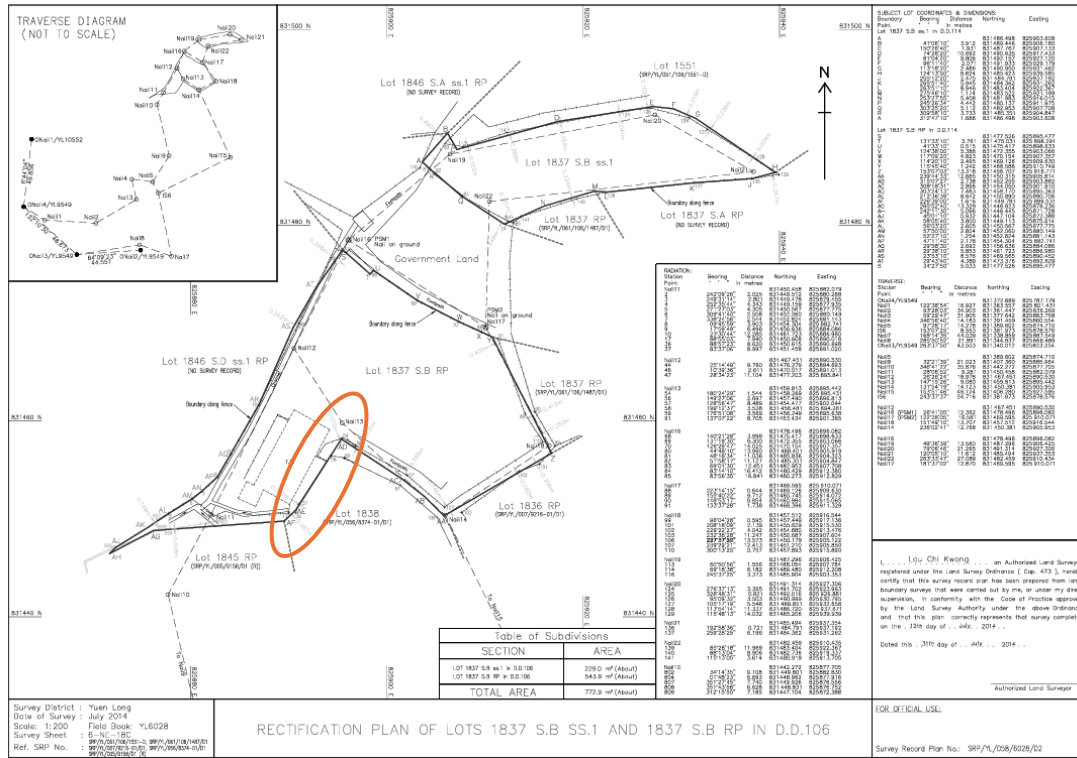


Enlargement of SRP/YL/066/8374-01/D1

Fact – Expert Witness

The SRP (rectification plan) prepared by Mr. Lau about the subject lot 1838 S.B RP in 2014

- Marked enclosure within Lot 1838 S.B RP



Enlargement of SRP/YL/058/6028/D2

Issues

- Two main issues which fall into determination :
- (1) whether the 2nd to 4th defendants have proved exclusive possession of the Disputed Land and the required *animus possidendi* by fencing for at least 20 years before the commencement of the plaintiff's claim, namely since August 1997;
- (2) whether the 1st defendant factually trespassed upon the Disputed Land.



Rules and reasoning

Adverse Possession Requirements:



1. Exceeding the limitation period

- According to limitation ordinance section 7 and 38A: 12 years if adverse possession began on or after 1 July 1991, 20 years otherwise
- In this case, both parties agreed that the limitation period shall be 20 years

2. Intention of possession (*animus possidendi*)

- Wong Tak Yue v Kung Kwok Wai & anor (No 2): Intention to possess must exclude the world, including the paper owner.

3. Exclusive possession

- Powell v McFarlane: Factual possession requires exclusive physical control, determined by the nature of the land and acts consistent with an occupying owner.
- Burden of prove : 2nd to 4th Defendant
- Richlands Properties Ltd v Occupiers of Lot 1347 of DD102 & Anor: The burden of proving uninterrupted possession falls on the squatter.

Rules and reasoning



Trespass

- Trespass is an unlawful interference with land in possession of another.
- In this case, the accusation against 1st defendant is a civil action, therefore, Summary Offense Ordinance and the related consequences shall not be applied

Legal principles of civil trespass:

- In *Southport Corporation v Esso Petroleum Co Ltd & Another* [1954] 2 QB 182, Denning LJ held at 195:
“Trespass to land. In order to support an action for trespass to land the act done by the defendant must be a physical act done by him directly on to the plaintiff’s land.”
- In *Lau Tao Shing v Lau King Lim (No. 2)* [1959] HKLR 354, Hogan CJ held at 360–361:
“Trespass to land consists in any unjustifiable intrusion by one person upon land in the possession of another.”

Application and analysis for issue 1

- **Exclusive possession**

- Defendants claimed fencing enclosed the Disputed Land since 1983.

Evidence undermined this claim:

- Defendants failed to provide maintenance records, photos, or invoices proving continuous occupation.
- The disputed land was covered by tree spire in aerial photographs throughout the years.
- 2008 Dimension Plan: No full enclosure.
- 2009 Photographs: Land was open and accessible.
- Testimony from plaintiff's witnesses suggested the land was accessible until 2010.

Application and analysis for issue 1

Exclusive possession

Orange Flag Evidence:

- Powell v McFarlane (1979) 38 P & CR 452: Enclosed fencing is the strongest evidence of possession, but other acts like placing warning signs may also establish possession
- Defendants argued the orange flag seen in a 2009 photograph demonstrated their exclusive possession.
- Plaintiff explained the flag was placed by contractors working on a drainage improvement project, not by the defendants, the court agreed with the claim
- Moreover, the flag's presence does not prove exclusive possession as it lacked accompanying exclusionary acts (e.g., "no trespassing" signs, or blocked access).
- The 2nd to 4th defendant failed to prove they have had sufficient degree of exclusive physical control





Application and analysis for issue 1

Intention to Possess

Defendants claimed a mistaken belief that the Disputed Land was part of Lot 1838.

Wong Kar Sue v Sun Hung Kai Properties Ltd: Mistaken belief of the ownership does not hinder adverse possession but requires clear evidence of intent to exclude others.

Wong Tak Yue v Kung Kwok Wai & anor (No 2): Intention to possess must exclude the world, including the paper owner.

Evidence showed:

- No signs, blocked access, or maintenance actions to indicate intention to possess before 2010.
- No credible evidence of enclosed fencing before 2010.
- Inconsistent testimony from the 4th defendant regarding fencing further weakened their case.

2nd to 4th defendant failed to prove they have had intention to possess

Application and analysis for issue 1

Uninterrupted Possession

- Defendants failed to prove 20 years of uninterrupted possession:
- Lack of evidence of uninterrupted occupation before 2010.
- Plaintiff's side suggested there was no enclosed fence before 2010 and their objection (demand letter) disrupted possession in 2010
- Richlands Properties Ltd: No presumption of continued possession in favor of the squatter.

Conclusion

- The 2nd to 4th defendants failed to prove exclusive possession, intention to possess, and uninterrupted possession for 20 years before 2017.



Application and analysis for issue 2

Plaintiff's Right to Possession:

- Plaintiff's title to the Disputed Land remained valid, as counterclaim for declaration of adverse possession failed

1st Defendant's Role:

- Became the registered owner of Lot 1838 in 2015, after alleged trespass occurred.
- As a minor in 2010 (15 years old when fencing was remodeled), it is reasonable to believe that he was not involved in interference with the Disputed Land.
- No evidence of physical entry or intentional interference by the 1st defendant.
- Southport Corporation v Esso Petroleum Co Ltd: Trespass requires a direct physical act, which was absent.

Conclusion

Plaintiff failed to prove any direct or intentional interference by the 1st defendant. The claim against the 1st defendant is dismissed.

Judgement

1. Plaintiff's Claim Against 1st Defendant:

- The plaintiff's claim against the 1st defendant is dismissed
- The court found no evidence that the 1st defendant was involved in or authorized the erection of fencing on the Disputed Land.

2. Judgment Against 2nd to 4th Defendants

- The plaintiff's claim against the 1st defendant is dismissed
- Their counterclaim for a declaration of possessory title to the Disputed Land is dismissed



Judgement



3. Vacant Possession and Demolition Order:

- The 2nd to 4th defendants must:
- Deliver vacant possession of the Disputed Land to the plaintiff within 28 days.
- Remove and demolish all structures** on the Disputed Land at their own expense within 28 days.

4. Costs Order:

- The plaintiff is to pay the 1st defendant's costs of the action.
- The 2nd to 4th defendants must pay the plaintiff's costs, including costs of the counterclaim, with a certificate for counsel.

5. Acknowledgment of Counsel Assistance:

- The court expressed gratitude to all counsel for their assistance in the case.



Role of Land Surveyors

- Resolving land boundary disputes
- Provide legal documents to court
- Expert analysis and opinion, likely reach a fair decision
- In this case, the land surveyor is **Mr. Eric Tang**
- We see the role and contributions of Mr. Eric Tang in this case in:
 - Presenting evidence to the Court
 - Being an impartial third party
 - Addressing the court's issues with expert findings
 - Giving professional opinion

Role of Mr. Eric Tang in the case – Presenting evidence

- Numerous pieces of evidence to the Court
 - Aerial photographs (covered by tree spreads in 1980s), difficult to see the physical features
 - Dimension Plan (2008), Rectification Plan (2014), from partial to total enclosure
 - Contradicts defendant's claim of exclusive possession since 1983
 - Adverse possession requires 20 years
- > Shows Mr. Tang's role as an impartial third party
 - Present to Court factual evidence



Role of Mr. Eric Tang in the case – Professional findings and opinions

- Some evidence has limitations
 - The aerial photographs might have distortions
 - Camera angle, terrain variations
- Rely on multiple sources
 - Survey sheets, aerial photographs, site visits
- Expertise as a licensed surveyor
 - More credibility
- Professional opinion
 - The fencing is likely fully enclosed between 2008 and 2014



Role of Land Surveyors – Overall

Taking the examples from Mr. Eric Tang's role

- Show and interpret technical evidence for the Court
- Maintain professional and impartial manner
- Help the Court to resolve the dispute
- Finally, the Court make judgement and resolve the boundary dispute
- Ensure the decisions are based on accurate and reliable evidence

Our Opinion – Agreement with the Court

The court's decision is **well-reasoned** and **justified**

1. Plaintiff presented credible documentary evidence to support ownership claim
 - Dimension Plan, Rectification Plan, aerial photographs
 - Land registration documents -> more credible, persuasive
2. Defendants failed to meet burden of proof for adverse possession
 - Relied heavily on unsupported statements
 - Without concrete evidence



Our Opinion – Agreement with the Court

3. Court's discharge of 1st defendant shows fairness and practicality

- 15 years old by the time of fencing construction
- Plaintiff failed to prove 1st Defendant's participation

4. Court's preservation of registered ownership rights is sound

- Plaintiff was already the owner of the Lot
- Protected the plaintiff's rights unless the defendant had shown sufficient evidence for adverse possession



Our Opinion – Agreement with the Court

5. The Court's judgement is based on the facts

- Focuses on secondary and extrinsic evidence (e.g. Dimension Plan, aerial photographs)
- Based on common grounds (e.g. owner is the plaintiff, warning letter)
- Reasonings were based on the legal framework
- Dismissed 4th Defendant's testimony
- Her written testimony: fencing was done in 2010
- After presented with plaintiff's photographs: fencing was done in 2009
- Self-contradiction
- The Court uses the most credible evidence available



Our Opinion – Comment on the role of the Court



Based on fact and practicality



Identify the plaintiff's strengths and the defendants' weaknesses in their arguments



Uses the most credible evidence



Accepts professional opinions



Reinforces ownership rights



Overall, well-reasoned and justified

Our Opinion – Concerns with Proprietary Estoppel

- Possibility of proprietary estoppel should be considered
- Defendants may have spent resources on erecting the fence
- If fencing contains valuable, immovable assets, proprietary estoppel may apply
- We analyze the timeline of events
 - Plaintiff's delayed action in escalating the dispute raises suspicions



Our Opinion: Proprietary Estoppel

Considering Plaintiff's actions and Defendants' properties

- Timeline of events
 - 2008: The fencing have existed on the Dimension Plan, but not fully enclosed (possibly allowed before?)
 - 2010: Plaintiff claimed he had issued a warning letter
 - 2015: 4th Defendant claimed she received his first warning letter
 - 2017: Police intervention and court proceeding
- We think that the Plaintiff's actions might raise suspicion, if it were more valuable than fencing, example: housing (7 years to escalate to Court?)
- Though unlikely, it is better to also be considered to make the judgement more comprehensive



Our Opinion – Concerns with Limitation Period



Court applied 20-year limitation period,
but 12-year period may be applicable



The defendants claimed for adverse
possession since 1983



1991 Limitation (Amendment) Ordinance –
12 years of possession since 1 July 1991



We have some
concerns:

Uncertainty regarding the date of
adverse possession began
Defendant's testimony
20-year Limitation period

Our Opinion – Limitation Period: The Court's application



- The 4th defendant self-contradicts her testimony
- 2nd and 3rd Defendant were too old to provide testimony
- Relied heavily on the 4th Defendant's claims (e.g. adverse possession since 1983)
- Discrepancies between the 4th Defendant's claims of the fencing and the improvement works
- Aerial photos showed no fencing (covered by tree spreads)
- The adverse possession (if any) was likely began after 1983, possibly after 1 July 1991

Our Opinion – Limitation Period: Alternative Scenario

- With adverse possession since 2005 + 12 years, the defendants might also be able to claim for adverse possession in 2017
- The Defendants only need to show exclusive, uninterrupted possession since **2005**
- Also satisfy the limitation period under 1991 Amendment
- However, the defendants claimed possession since 1983
- Reasonable for the Court to apply 20 years limitation period
- There should be more **caution** in determining the timeline concerning the limitation period
- Considering this possibility -> make the judgement sounder and more comprehensive

Our Opinion - Conclusion



Overall, the court's judgment in this case is sound and fair



The court's reliance on the objective, **technical evidence** provided by the land surveyor expert, Mr. Eric Tang, was crucial in reaching its conclusion



This case highlights the important role that land surveyors play as **expert witnesses** in resolving complex land boundary disputes



While there are some **potential issues** around proprietary estoppel and the application of the limitation period, the court's reasoning and priorities are aligned with the **relevant legal principles** and precedents



The outcome of this case serves to protect the registered ownership rights of the plaintiff, while also underscoring the need for strong, **credible evidence** to successfully assert claims of adverse possession.

Thank you~~